



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35873055

Date: JAN. 14, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen under the Violence Against Women Act (VAWA) provisions codified at section 204(a)(1)(B)(ii) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1154(a)(1)(B)(iii). The Director of the Vermont Service Center denied the Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)(VAWA petition), concluding that the Petitioner did not establish she resided with her abuser spouse or that she married her U.S. citizen spouse in good faith, as required. The matter is now before us on appeal. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

A petitioner who is the spouse or former spouse of a U.S. citizen may self-petition for immigrant classification if the petitioner demonstrates, in part, that they entered into the marriage with the lawful permanent resident spouse in good faith, and the petitioner was battered or subjected to extreme cruelty perpetrated by the petitioner's spouse. Section 204(a)(1)(A)(iii) of the Act. Among other things, a petitioner must establish that they have resided with the abusive spouse. Section 204(a)(1)(A)(iii)(II)(dd) of the Act; 8 C.F.R. § 204.2(c)(1)(i)(D). The Act defines a residence as a person's general abode, which means their "principal, actual dwelling place in fact, without regard to intent." Section 101(a)(33) of the Act, 8 U.S.C. § 1101(a)(33). Although there is no requirement that a VAWA petitioner reside with their abuser for any particular length of time, a petitioner must show that they did, in fact, reside together. Section 204(a)(1)(A)(iii)(II)(dd) of the Act; 8 C.F.R. § 204.2(c)(1)(v). Evidence of joint residence may include employment, school, or medical records; documents relating to housing, such as deeds, mortgages, rental records, or utility receipts; birth certificates of children; insurance policies; or any other credible evidence. 8 C.F.R. § 204.2(c)(2)(iii).

Petitioners are "encouraged to submit primary evidence whenever possible," but may submit any relevant, credible evidence in order to establish eligibility. 8 C.F.R. § 204.2(c)(2)(i). U.S. Citizenship and Immigration Services (USCIS) determines, in our sole discretion, what evidence is credible and the weight to give to such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

In this case, the Petitioner married J-G-C-¹, a U.S. citizen, in [] 2018. In Part 10 of her VAWA petition, the Petitioner indicated that she lived with J-G-C- from May 1, 2018, to May 31, 2019, at a residence on [] New York. In her April 2021 statement, the Petitioner detailed that J-G-C- moved to her residence in May 2018 and he stayed with her “about four nights a week.” On [] 2018, they married. In support of their joint residence, the Petitioner submitted a marriage certificate and copies of immigration applications detailing their purported joint address.

The Director issued a request for evidence (RFE), stating, among other things, that the evidence did not establish that the Petitioner and J-G-C- resided together after they married on [] 2018. The Director sought documentation that the Petitioner resided with her spouse, providing examples of evidence that may establish the couple’s shared residence. In response to the RFE, the Petitioner stated that J-G-C- moved in with her in May 2018 and moved out in May 2019. She contends that J-G-C- “manipulated me and controlled all the joint documents that we have” and she does not have access to these documents. In support of her contention that she resided with J-G-C-, she submits several affidavits from individuals that assert that she and the Petitioner resided together after marriage.

The Director denied the petition, finding, in pertinent part, that the Petitioner had not established joint residence with J-G-C-. The Director noted that the evidence in the record, including the third-party affidavits, did not suffice to establish that the Petitioner and J-G-C- resided together after marriage. The Director also determined that the Petitioner did not establish that he entered the marriage with J-G-C- in good faith. On appeal, the Petitioner submits a brief and an August 2024 psychiatric evaluation and asserts that she has established eligibility for the benefit sought.

The arguments and evidence submitted by the Petitioner on appeal are not sufficient, standing alone or viewed in totality with the underlying record, to establish that the Petitioner resided with J-G-C-. As noted above, “residence” means a person’s principal, actual dwelling place, without regard to intent. Section 101(a)(33) of the Act. The preamble to the 1996 interim rule, which confirmed that this definition of residence is binding for VAWA self-petitioners, specifies that “[a] self-petitioner cannot meet the residency requirements by merely . . . visiting the abuser’s home . . . while continuing to maintain a general place of abode or principal dwelling place elsewhere.” *Petition to Classify Alien as Immediate Relative of a United States Citizen or as a Preference Immigrant; Self-Petitioning for Certain Battered or Abused Spouses and Children*, 61 Fed. Reg. 13061, 13065 (Mar. 26, 1996).

Here, the Petitioner has not met her burden of establishing that J-G-C-’s principal, actual dwelling place was with her after marriage. Although we acknowledge the Petitioner’s statements, they are general in nature, lack specific dates or details, and do not provide any description of the actual residence evidencing the Petitioner’s life there with J-G-C-, such as details of the residence, home furnishings, daily routines, or any of their belongings. Furthermore, with respect to the third-party affidavits, these statements have limited probative value as they are general in nature, lack specific dates or details, and do not provide any description of the actual residence evincing the Petitioner’s life there with J-G-C-. The psychiatric evaluations in the record likewise do not include substantive information about the Petitioner’s purported shared residence with J-G-C- after their marriage in [] 2018. Nor do the copies of the immigration applications and the marriage certificate establish that J-G-C- actually resided with the Petitioner after their marriage.

¹ We use initials to protect the identities of the individuals in this case.

Most notably, we note that while the Petitioner stated in her VAWA petition that she resided with J-G-C from May 1, 2018, to May 31, 2019 at a residence on [REDACTED] New York, as detailed above, the Certificate of Birth of the Petitioner's child, dated [REDACTED] 2019, contradicts this claim, as the document states that the Petitioner resides at a residence on [REDACTED] in [REDACTED] New York.

The Director further determined that the Petitioner had not demonstrated that she married J-G-C in good faith, as required by section 204(a)(1)(B)(ii)(II)(bb) of the Act. As the Petitioner's inability to establish that she resided with J-G-C is dispositive of his appeal, we decline to reach and hereby reserve the Petitioner's appellate arguments on this issue. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

In conclusion, the Petitioner has not established that she resided with her U.S. citizen spouse. Consequently, she has not demonstrated that she is eligible for immigrant classification under VAWA. The petition will therefore remain denied.

ORDER: The appeal is dismissed.